

PROCEEDING OF WARNING

Of the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 10, 2023. The complaint is directed against UBRIQUE D&A, S.L. with NIF B72308224 (hereinafter, UBRIQUE D&A;). The reasons for the complaint are as follows:

The complainant states that an image extracted from the surveillance system was published on the Facebook page of a UBRIQUE D&A; store, implying that the person appearing in the image, who is the complainant's 12-year-old son, had stolen from the mentioned store.

Along with the notification, the following are provided:

- Screenshots of the conversation between the complainant and the person responsible for the FACEBOOK page, in which the following can be read:

"Hello, good evening, I don't know what happened, but I don't understand why you posted a photo of my son. If you could explain what happened, I hope you will delete that post."

"I hope it's a mistake because otherwise we will report you."

"You should not post a photo of a minor."

"Who told you that he stole?"

"They stole a lot together."

"Since someone found it, I will delete the photo."

- Three published photographs.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to UBRIQUE D&A;, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on May 24, 2023, as recorded in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On July 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 1, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against UBRIQUE D&A; for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, in which it was indicated that they had a period of ten days to submit allegations.

This initiation agreement, which was notified to UBRIQUE D&A; in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was acknowledged on February 2, 2024, as recorded in the acknowledgment of receipt in the file.

FIFTH: On February 14, 2024, a letter from UBRIQUE D&A; was received by this Agency, in due time and form, in which it presented allegations to the initiation agreement.

In these allegations, in summary, it stated that:

1. The reason for the commission of the infringement attributed in this sanctioning file was due to human error.

It also wants to highlight that the photos containing images of the minor were deleted at the request of the complainant, as already mentioned in the initiation agreement of the warning procedure dated February 1, 2024.

2. UBRIQUE D&A; wishes to point out that it has proceeded to designate the figure of a DPO in order

to have better advice on Data Protection to prevent such situations from recurring. It attaches the proof of registration of the request for the designation of a DPO before this Agency, dated February 8, 2024. 3. UBRIQUE D&A; has decided to carry out periodic data protection audits accompanied by specialized advice in the matter, which will conclude with the preparation of the corresponding reports identifying possible deficiencies and corrective proposals.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present proceeding,

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PROVEN FACTS

FIRST: It is recorded that photographs featuring a minor have been published on the FACEBOOK page of the store UBRIQUE D&A.;

SECOND: These photographs with the images were extracted from the store's video surveillance system.

THIRD: The photographs featuring the minor have already been deleted from the FACEBOOK profile of UBRIQUE D&A.;

FOURTH: UBRIQUE D&A; has acknowledged the publication of the images on the FACEBOOK profile and has stated that it occurred by mistake.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

And Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," in its third section provides that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for the Protection of Data, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

II

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Preliminary Issues

The GDPR defines personal data in its Article 4.1 as:

"Any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

The GDPR defines data processing in Article 4.2 of the GDPR: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, collation or interconnection, restriction, erasure, or destruction."

In this case, according to Article 4.1 of the GDPR, the physical image of a person is personal data. Thus, its inclusion on websites, forums, publications, which identify or make a person identifiable, constitutes processing of personal data.

Furthermore, UBRIQUE D&A; is the data controller, in accordance with the provisions of Article 4.7 of the GDPR, which states: "data controller or controller: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States;"

III

In relation to the allegations made regarding the initiation agreement of the present warning procedure, UBRIQUE D&A; has only acknowledged the facts and has stated that the publication of the images occurred due to an error.

Additionally, it has highlighted the adoption of a series of measures regarding data protection, such as:

- appointing a data protection officer for better advice.
- conducting periodic data protection audits by a specialized advisor in the field, with the preparation of reports detecting deficiencies and corrective proposals.

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Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that:

"Personal data shall be:

- a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);
- (...)"

The principle of legality is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing under paragraph 1, letters c) and e), by specifying more precisely the specific requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, letters c) and e), shall be established by:

a) Union law, or

b) the law of the Member States applicable to the controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued. (...)”

In this regard, Recital 40 of the GDPR states that “In order for processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

In the case at hand, it is considered that UBRIQUE D&A; has processed the data of third parties, specifically minors, by uploading images obtained through the surveillance cameras of the establishment to the social network FACEBOOK, without the consent of the parents of the minor, and without any of the lawful bases for processing required by Article 6.1 of the GDPR being present. Therefore, in accordance with the evidence available at this moment in the resolution of the warning procedure, it is considered that the known facts constitute an infringement attributable to UBRIQUE D&A; for violation of the aforementioned article.

V

Classification and qualification of the infringement of Article 6.1 of the GDPR

The known facts constitute an infringement attributable to UBRIQUE D&A;, classified under Article 83.5 of the GDPR under the heading “General conditions for the imposition of administrative fines,” which states:

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"The violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations, Article 72 “Very Serious Violations” of the LOPDGDD states:

“1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the lawful processing conditions established in Article 6 of Regulation (EU) 2016/679.

(...)”

V

Warning for the violation of Article 6.1 of the GDPR

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In the present case, once all the documentation in the file has been analyzed, it is deemed lawful to issue a warning to UBRIQUE D&A; for the violation of Article 6.1 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to UBRIQUE D&A;, S.L., with NIF B72308224, for a violation of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to UBRIQUE D&A;, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

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